

SUBJ: USE OF OTHER THAN FULL AND OPEN COMPETITION FOR AN ACQUISITION UNDER THE SIMPLIFIED ACQUISITION THRESHOLD

I. BACKGROUND:

1. FAR 13.106-1(b)(1)(i) states for purchases not exceeding the simplified acquisition threshold, Contracting Officers may solicit from one source if the Contracting Officer determines that the circumstances of the contract action deem only one source reasonably available (e.g., urgency, exclusive licensing agreements, brand-name or industrial mobilization).

2. As required by FAR 13.106-3(b)(3)(i), this memorandum explains the absence of competition for this acquisition, as only one source will be solicited for this requirement (or for a portion of the requirement) and the requirement is not expected to exceed the simplified acquisition threshold.

II. DESCRIPTION OF ITEM OR SERVICE:

This Justification and Approval seeks to require inclusion of a brand name in the solicitation N62470-25-R-0004 MILCON P1080 Design-Bid-Build, Power Reliability and Water Resiliency Upgrades, Portsmouth Naval Shipyard, Kittery, Maine. Infact Corporation ductile iron Foster Adaptor are a critical, necessary component to support water supply capabilities at PNSY. Infact Foster Adaptors allow for a close-coupled connection of pipe fittings and appurtenances in areas where it is not feasible to fit a spool section of water pipe with two mechanical flanges between two components requiring connection. The Foster Adaptor provides the mechanical restraint of the typical flange fittings by bolting through the adapter and connecting the two components while providing a leak free connection. There are a few locations where Foster Adaptors are needed to be able to meet and connect to existing water mains in limited spaces on the P1080 project. Use of Foster Adaptors in the P1080 design is limited to only those areas where typical mechanical flange joints are not feasible due to inadequate spacing. The units are being procured under the referenced solicitation. [REDACTED]

III. THE DETERMINATION FOR USE OF OTHER THAN FULL AND OPEN COMPETITION IS BASED ON THE FOLLOWING:

A. ____ ONLY ONE RESPONSIBLE SOURCE (select all that apply):

1. ____ RESTRICTIVE RIGHTS. The source has established proprietary rights, limited rights in data, patent rights, copyrights or secret processes in the item or service required.

2. ____ EXCLUSIVE LICENSING AGREEMENTS. The item or service is only available from the Original Equipment Manufacturer (OEM), or there is only one authorized distributor or technical representative for the OEM.

3. ____ OTHER REASONS.

B. X BRAND NAME. Item required must be a brand name product, or feature of a product, particular to one manufacturer.

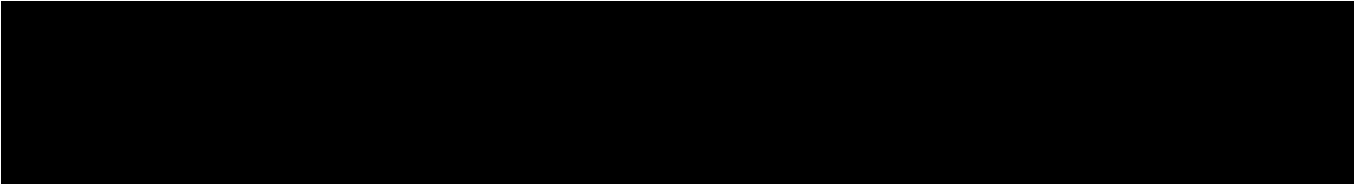
The Infact Foster Adaptor as a required source is necessary because the product meets the solicitation's specific needs, and it is the only product on the market that fulfills all the requirements outlined above.

C. UNUSUAL AND COMPELLING URGENCY. The supplies or services are of such unusual and compelling urgency that the Government would be seriously injured unless the agency is permitted to limit the number of sources from which it solicits bids or proposals. Urgent requirements are supplies or services that will result in a work stoppage or are mission critical and the routine processing time would result in injury to the Government. The determination that the procurement for the above item/service is an urgent and compelling requirement is based on the following:

1. Date on which the requirement was first identified:
2. Required delivery date/period of performance:
3. Explanation of why delivery/commencement of services by the date mentioned above is required:
4. If appropriate, include any additional pertinent information.

IV. CERTIFICATIONS/APPROVALS:

Technical / Requirements Certification: I certify that the facts and representation under my cognizance which are included in this justification are complete and accurate to the best of my knowledge and belief.



Contracting Officer Approval

I certify that this Justification is accurate and complete to the best of my knowledge and belief.

